

		(2) Case number 30-2024-01407963 (<i>Batoon vs. The Learning Light Foundation, Inc., et al.</i>) (the "Batoon Action"); and (3) Case number 30-2026-01568593 (<i>The Learning Light Foundation, Inc. vs. Tayfour</i>) (the "5671 Action"). In the <i>Sutcliffe Action</i>, what is currently before the Court is the OSC re Preliminary Injunction, set at the request of Ms. Tayfour, regarding access to and control of Learning Light Foundation, Inc. ("LLF") funds and accounts, among other things. In the <i>Batoon Action</i>, what is currently before the Court is the continued hearing on the Amended Motion to Disqualify James Lawrence Hanger III as Counsel of Record, regarding the assertion by Ms. Tayfour's counsel that she is counsel for LLF, and that Mr. Hanger is not authorized to represent LLF. In the <i>5671 Action</i>, what is currently before the Court is the continued Case Management Conference. The merits of both the OSC re Preliminary Injunction and the Amended Motion to Disqualify, etc. are in substantial part dependent upon who is authorized to act for LLF and has the right to hire and direct counsel for LLF. The Court will thus address that issue forthwith, in the 5671 Action. An imminent date for an evidentiary hearing in the 5671 Action will thus be set at this hearing. The Court, in conformity with the articles and bylaws to the extent feasible, will determine the person(s) entitled to the office of director and/or may order a new election to be held or appointment to be made. In this process, the Court will have to determine the validity of the issuance of memberships and the right of persons to vote and may direct such other relief as may be just and proper at that hearing.
8	Batoon v. The Learning Light Foundation, Inc.	See above.
9	The Learning Light Foundation, Inc. v. Tayfour	See above.
10	Trejo v. Trejo	The Motion for Leave to Amend brought by Cross-Complainant Carmen Trejo is DENIED, without prejudice to a motion which: (1) Complies with California Rules of Court rule 3.1324; and (2) Attaches the Complaint for which leave will be sought. Cross-Complainant Carmen Trejo seeks leave to file a First Amended Cross-Complaint which adds a claim for Partition. (Motion: 3:23-24.) Cross-Defendants do not oppose the substantive amendment requested. (Opposition: 6:16-17.) Nor do Cross-Defendants appear to dispute the timeliness of the motion; however, as noted by Cross-Defendants, Cross-Complainant failed to comply with California Rules of Court rule 3.1324, within her initial motion.

		The Motion for Leave to Amend did not identify the changes in the proposed pleading as required by California Rules of Court rule 3.1324(a). Nor did the Declaration of Brian Ballo comply with California Rules of Court rule 3.1324(b). While the Supplemental Declaration of Brian Ballo attempts to address this defect, "[i]t is elementary that points raised for the first time in a reply brief are not considered by the court." (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) Additionally, a trial court may require compliance with California Rules of Court rule 3.1324. (See <i>Hataishi v. First American Home Buyers Protection Corp.</i> (2014) 223 Cal.App.4th 1454, 1469.) In addition to the above, the Supplemental Declaration of Brian Ballo indicates Cross-Complainant Carmen Trejo wishes to alter the proposed pleading attached to the motion. (See ¶3 of Supplemental Ballo Declaration.) Counsel's Supplemental Declaration requests leave to attach a new Exhibit F to the proposed pleading. (<i>Ibid.</i>) Additionally, "request is made to add a new paragraph 18 attaching the Litigation Guarantee as Exhibit 'G' to the FACC, once leave to amend is granted." (¶3 of Supplemental Ballo Declaration.) These newly proposed alterations deprive Cross Defendants of the opportunity to respond thereto. Moreover, the newly submitted requests ask the Court to approve a complaint which has not, technically, been submitted. Based on the above, and to avoid any due process implications, the motion is DENIED, without prejudice, as specified above. Cross-Defendants to give notice.
11	Sweiss v. Holbrook	Before the Court is a Motion for Summary Judgment brought by cross-defendant Randa Sweiss as to the Cross Complaint filed by Merrill Holbrook. For the reasons set forth herein, the motion is DENIED. "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., §437c(a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., §437c(c).) "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “When the notice of motion seeks only summary judgment, the presence of any triable issue requires denial of the motion. The court may not summarily adjudicate claims or defenses as to which no triable issue was raised unless requested in the notice of motion.” (Rutter Guide, Civil Procedure Before Trial, Summary Judgment and Summary Adjudication, Chapter 10-C, § 10.88, citing *Homestead Sav. v. Sup.Ct. (Dividend Develop. Corp.* (1986) 179 Cal.App.3d 494, 498.)

Here, Sweiss argues the first cause of action for Assault fails “because there is no evidence that Sweiss committed any act intended to cause Holbrook apprehension of harmful contact.” (Motion at 7:11-12) Sweiss also argues that “the Battery claim fails because there is no evidence that Sweiss intentionally made harmful or offensive contact with Holbrook. (Motion at 7:26-27)

The Court has reviewed the transcript from Holbrook’s deposition submitted by Sweiss at Exh. B and finds there is question of material fact. At pages 48-54, 67, 79, 83, 84 and 86, Holbrook describes the incidents which occurred as he was exiting the Nixon library on his electric mobility scooter. He describes how the plaintiff and another person used a flag they were displaying as part of a protest to “clothesline” him as he was exiting. He also describes how the plaintiff stepped on his scooter in such a manner as to nearly cause him to fall. While plaintiff may claim it was Holbrook who was the agitator and not the plaintiff, for purposes of summary judgment, there is a triable issue of material fact exists as to the causes of action for Assault and Battery.

Because Sweiss had failed to establish she is entitled to judgment on the entire complaint, the motion is DENIED.

In addition, Sweiss identified 26 material facts in her separate statement. The Court notes that many of the facts include inaccurate citations to evidence. Notwithstanding, Holbrook has effectively disputed “undisputed material fact” numbers 7, 8 and 12, thus further establishing a question of material fact exists and that the motion should be DENIED. (*Insalaco v. Hope Lutheran Church of W. Contra Costa Cnty.* (2020) 49 Cal. App. 5th 506, 522 - “Because a dispute as to any one of these facts means there was a dispute as to a concededly material fact, the trial court erred in granting summary judgment.”)

The Court also notes that the notice of motion originally gave notice for a hearing on 7/20/26. Because the motion was served by email on 4/30/26, that was less than the notice required by Section 437c(a)(2). Although the Clerk continued the hearing to 7/27/26, that does not change the fact that the motion was served with insufficient notice for the original hearing date.

In light of the foregoing, Holbrook’s request to continue the hearing pursuant to Section 437c(h) is MOOT.

		Holbrook's objections contained in his separate statement are OVERRULED. Objections are required to be separately filed. (Rule 3.1354(b).) For the foregoing reasons, the motion is DENIED. Holbrook's request for sanctions is DENIED. Holbrook is ordered to give notice.
12	Pham v. Tran, et. al.	Before the Court is a motion by Brian W. Easton, Esq. in which he seeks to be relieved as counsel for plaintiff Dung Pham. The Court finds the motion has been properly served on Mr. Pham. The Court also finds Mr. Pham will not be prejudiced by Mr. Easton's withdrawal because trial has not been set. Further, because this motion is only brought by Mr. Easton, Mr. Pham will continue to be represented by Saul E. Wolf, Esq. (See Substitution at ROA 72) The Court also finds the motion generally complies with Rule 3.1362. Accordingly, the motion is GRANTED. The Court's ruling will become effective upon the filing of a proof of service of the Court's signed order on Mr. Pham. Mr. Easton is ordered to give notice.
13	Cabrera v. Ponc	Before the Court are two unopposed motions to be relieved as counsel of record for defendants Diego Ponce and P3Elite LLC filed by counsel Monica D. Dib and Nina Jafari. Both motions are GRANTED. Each counsel has complied with the procedural requirements of California Rules of Court, rule 3.1362. The court finds good cause to grant the relief requested on the merits. The order granting relief is effective upon filing of a proof of service of the signed order on the client. Moving counsel shall give notice.
14	Black vs. Mercy House Living Centers	A) Form Interrogatories Defendant Mercy House Living Centers' ("Defendant") unopposed motion to compel plaintiff Kevin Black's ("Plaintiff") further responses to form interrogatories is GRANTED. Plaintiff appears to have failed to serve verifications with any of the interrogatories or requests for production. Failure to serve a verification is "tantamount to no responses at all." (<i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636.) Plaintiff has waived any objections to the Discovery as a result. (<i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.)

Plaintiff's responses to form interrogatories nos. 2.8, 4.1, and 50.1 – 50.6 are also independently deficient and further objection free responses must be served. (Civ. Proc. Code § 2030.300.)

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion, which comes from \$225/hr. x 2.1 hr. + \$60 fee = \$532.50. (Civ. Proc. Code § 2030.300(d).) The lowered amount comes from no opposition/reply briefs being filed and the appearance time being split among all five motions.

B) Special Interrogatories

Defendant's unopposed motion to compel Plaintiff's further responses to special interrogatories is **GRANTED**.

Plaintiff's responses to special interrogatories nos. 1 – 21 are deficient and further objection free responses must be served. (Civ. Proc. Code § 2030.300.)

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion. (Civ. Proc. Code § 2030.300(d).)

C) Requests for Production

Defendant's unopposed motion to compel Plaintiff's further responses to requests for production is **GRANTED**.

Plaintiff's responses to requests for production nos. 1 – 8; 9-12; 13-19; 22; 31; 32; 34; and 37 are deficient and further objection free responses must be served. (Civ. Proc. Code § 2031.310.) There also does not appear to have been any responsive documents identified or served with the responses.

The court also awards monetary sanctions in favor of Defendant and against Plaintiff in the sum of \$532.50 on this motion. (Civ. Proc. Code § 2031.310(h).)

The cumulative total monetary sanctions in favor of Defendant and against Plaintiff on the three discovery motions is \$1,597.50.

D) Demurrer

Defendant's unopposed demurrer to Plaintiff's first amended complaint ("FAC") is **SUSTAINED**.

The FAC is uncertain and fails to plead sufficient facts against Defendant. (Civ. Proc. Code § 430.10(e) and (f).) As with the original complaint, the FAC is largely unintelligible, contains causes of action which are not valid as titled, and contains causes of action for which Plaintiff appears to lack standing.

As to cause of action ("COA") no. 1 for breach of contract, the COA does not indicate any duties or obligations between the parties or

	any breaches thereof. The purported contract is largely illegible, and Plaintiff has not put forth the terms of the agreement between the parties or how Defendant breached said contract. It also appears at least one of the contracts may have been between Defendant and HUD/FHA, and not Plaintiff. (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal. App. 4th 299, 307.) There are insufficient facts to support this COA and it is uncertain. As to COA no. 2 for false advertising, it COA, unclear how any of the purported advertising was false and how Plaintiff was damaged by the alleged false advertising. (<i>Bower v. AT&T Mobility, LLC</i> (2011) 196 Cal. App. 4th 1545, 1554.) As to COA no. 3 for intentional infliction of emotional distress, Plaintiff failed to allege any specific acts of extreme or outrageous conduct on the part of Defendant or how any of Plaintiff's alleged symptoms were the result of actions by Defendant. (<i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1050.) Plaintiff's COA no. 4 for 'clinical negligence' appears to be a COA for medical malpractice. There are no facts supporting any medical care which Defendant was required to provide or provided to Plaintiff which fell below the standard of care in the care providing community or which caused injury to Plaintiff. (<i>Johnson v. Superior Court</i> (2006) 143 Cal.App.4th 297, 305.) It also appears Defendant was a provider of residential services and not medical services, so there is a question of duty. As to COA no. 5, Plaintiff alleged no circumstances suggesting discriminatory motive or actions on the part Defendant. (<i>Guz v. Bechtel Nat. Inc.</i> (2000) 24 Cal. 4th 317, 355.) As the FAC does not plead sufficient facts to support any of the COA and it is uncertain, the demurrer is sustained in its entirety. E) Motion to Strike Defendant's unopposed motion to strike is MOOT based on the demurrer being sustained. Plaintiff is given one final leave to file an amended complaint within 15 days of written notice of the ruling. Plaintiff's further responses to interrogatories and requests for production, as well as monetary sanctions, are also due within 15 days of written notice of the ruling. Defendant to give notice.
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